

STATE OF NEW YORK

2086--A

Cal. No. 226

2025-2026 Regular Sessions

IN SENATE

January 15, 2025

Introduced by Sens. KAVANAGH, HARCKHAM, MAY, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the public service law and the environmental conservation law, in relation to increasing the statewide energy storage capacity

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 137 of the public service law, as
2 added by section 11 of part 0 of chapter 58 of the laws of 2024, is
3 amended to read as follows:
4 1. "CLCPA targets" shall mean the public policies established in the
5 climate leadership and community protection act enacted in chapter one
6 hundred six of the laws of two thousand nineteen, including but not
7 limited to the requirement that a minimum of seventy percent of the
8 statewide electric generation be produced by renewable energy systems by
9 two thousand thirty, that by the year two thousand forty the statewide
10 electrical demand system will generate zero emissions, and the procure-
11 ment of at least nine gigawatts of offshore wind electricity generation
12 by two thousand thirty-five, six gigawatts of photovoltaic solar gener-
13 ation by two thousand twenty-five and to support [~~three~~] six gigawatts
14 of statewide energy storage capacity by two thousand thirty, twelve
15 gigawatts of statewide energy storage capacity by two thousand forty,
16 and seventeen gigawatts of statewide energy storage capacity by two
17 thousand fifty.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

LBD00201-04-6

1 § 2. Paragraph e of subdivision 13 of section 75-0103 of the environ-
2 mental conservation law, as added by chapter 106 of the laws of 2019, is
3 amended to read as follows:

4 e. Measures to achieve six gigawatts of distributed solar energy
5 capacity installed in the state by two thousand twenty-five, nine giga-
6 watts of offshore wind capacity installed by two thousand thirty-five, a
7 statewide energy efficiency goal of one hundred eighty-five trillion
8 British thermal units energy reduction from the two thousand twenty-five
9 forecast; and [~~three~~] six gigawatts of statewide energy storage capacity
10 by two thousand thirty, twelve gigawatts of statewide energy storage
11 capacity by two thousand forty, and seventeen gigawatts of statewide
12 energy storage capacity by two thousand fifty.

13 § 3. Subdivision 5 of section 66-p of the public service law, as added
14 by chapter 106 of the laws of 2019, is amended to read as follows:

15 5. No later than July first, two thousand twenty-four, the commission
16 shall establish programs to require the procurement by the state's load
17 serving entities of at least nine gigawatts of offshore wind electricity
18 generation by two thousand thirty-five and six gigawatts of photovoltaic
19 solar generation by two thousand twenty-five, and to support [~~three~~] six
20 gigawatts of statewide energy storage capacity by two thousand thirty,
21 twelve gigawatts of statewide energy storage capacity by two thousand
22 forty, and seventeen gigawatts of statewide energy storage capacity by
23 two thousand fifty.

24 § 4. This act shall take effect immediately; provided, that the amend-
25 ments to section 137 of the public service law made by section one of
26 this act shall not affect the repeal of such section and shall be deemed
27 repealed therewith.